

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF IVANOV AND OTHERS v. RUSSIA

(Applications nos. 57884/19 and 21 others –
see appended list)

JUDGMENT

STRASBOURG

25 May 2023

This judgment is final but it may be subject to editorial revision.



In the case of Ivanov and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 4 May 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers and participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, having dismissed the Government's objection of non-exhaustion in application no. 12520/20, and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and

Korneyeva v. Russia, no. 72051/17, §§ 34-36, 8 October 2019, concerning various aspects of unlawful deprivation of liberty of organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

V. REMAINING COMPLAINTS

13. Some applicants further raised additional complaints under Articles 5 and 6 of the Convention concerning other aspects of their detention and fairness of the administrative-offence proceedings. In view of the findings in paragraphs 11 and 12 above, the Court considers that there is no need to deal separately with these remaining complaints.

14. Lastly, in applications nos. 7276/20 and 18092/20 the applicants also raised other complaints under various Convention provisions.

15. The Court has examined the applications and considers that, in the light of all the material in its possession and in so far as the matters complained of are within its competence, those complaints either do not meet the admissibility criteria set out in Articles 34 and 35 of the Convention or do not disclose any appearance of a violation of the rights and freedoms enshrined in the Convention or the Protocols thereto. It follows that this part of the two applications must be rejected in accordance with Article 35 § 4 of the Convention.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

16. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

17. Regard being had to the documents in its possession and to its case-law (see *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the dispersal of the public assembly and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible; *decides* that there is no need to examine separately the remaining complaints under Articles 5 and 6 of the Convention about other aspects of their detention and the fairness of the administrative offence proceedings; and *declares* the remainder of applications nos. 7276/20 and 18092/20 inadmissible;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention concerning the dispersal of the public assembly;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 25 May 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	57884/19 23/10/2019	**Sergey Viktorovich IVANOV** 1993	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/08/2019	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest, escorting to a police station, detention on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
2.	58098/19 30/10/2019	**Arsen Igorevich MURADOV** 1990	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 16/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police station on 27/07/2019 for the sole purpose of drawing up a record of administrative offence (such record compiled on 30/07/2019 only), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	193/20 18/12/2019	**Sergey Vladimirovich SHIRYAYEV** 1967	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019 Manifestation for fair elections to Mosgorduma Moscow 03/08/2019	Article 20.2 § 5 of CAO Article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 15,000	Moscow City Court 20/09/2019 Moscow City Court 04/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention (i) on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; and (ii) on 03/08/2019, in excess of three hours, for the same purpose, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of the administrative-offence proceedings (final judgments issued on 20/09/2019 and 04/10/2019 respectively)	4,000
4.	7276/20 28/01/2020	**Sergey Petrovich ASHCHEPKOV** 1957	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	Administrative detention of 10 days	Moscow City Court 06/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention between 27/07/2019 and 29/07/2019 as administrative suspect (an administrative-offence record compiled on 28/07/2019): no evidence/assessment of any "exceptional circumstances" under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
5.	12520/20 21/02/2020 and 1634/21 05/12/2020	**Mikhail Aleksandrovich SHANGIN** 1978	Sirosh Fedor Yevgenyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019 Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6 of CAO Article 20.2 § 5 of CAO	fine of RUB 10,000 fine RUB 15,000	Moscow City Court 04/09/2019 Moscow City Court 26/06/2020	Art. 5 (1) - unlawful deprivation of liberty - (i) arrest at 2 p.m., escorting to a police station, detention until 4 p.m. on 27/07/2019 for the sole purpose of drawing up a record of administrative offence under Article 20.2 § 5 of the CAO; (ii) arrest at 9.30 p.m. escorting to a police station at 9.40 p.m. on 27/07/2019, detention until 29/07/2019 as administrative suspect (administrative offence record under Article 20.2 § 6(1) of the CAO compiled on 27/07/2019): no evidence/assessment of any "exceptional circumstances" under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative-offence proceedings (final judgments issued on 04/09/2019 and 26/06/2020 respectively)	5,000
6.	14812/20 11/03/2020	**Sergey Viktorovich BUKHAROV** 1963	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 04/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect (administrative-offence record compiled already on 28/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
7.	14830/20 03/03/2020	**Vyacheslav Vladimirovich SELIKHOV** 1986	Sirosh Fedor Yevgenyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019 Manifestation in support of A. Navalnyy Moscow 31/01/2021	Article 20.2 § 6.1 of CAO Article 20.2 § 8 of CAO	fine of RUB 10,000 administrative detention of 10 days	Moscow City Court 04/09/2019 Moscow City Court 10/02/2021	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention (i) between 9.30 p.m. on 27/07/2019 and at least 28/07/2019 (as raised on appeal and confirmed by documents) for the purpose of drawing up a record of administrative offence; (ii) between 31/01/2021 and 01/02/2021 for the same purpose (administrative offence record compiled on 31/01/2021), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - both sets of administrative-offence proceedings	5,000
8.	14833/20 03/03/2020	**Petr Ivanovich MOSKALEV** 1989	Sirosh Fedor Yevgenyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station and detention between 27/07/2019 and 29/07/2019 for the sole purpose of drawing up a record of administrative offence (such record compiled on 28/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
9.	14835/20 03/03/2020	**Danila Alekseyevich GULIN** 1982	Sirosh Fedor Yevgenyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 27/07/2019 and 29/07/2019 for the purpose of drawing up a record of administrative offence (such record compiled on 27/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	14962/20 04/03/2020	**Grigoriy Olegovich TOLKACHEV** 1970	Moskalenko Karinna Akopovna Strasbourg	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect ("for a timely and correct determination of the case"): no evidence/assessment of any exceptional circumstances under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	15031/20 12/03/2020	**Cheslav Yezhiyevich PFEYFFER** 1986	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention between 27/07/2019 and 29/07/2019 for the sole purpose of drawing up a record of administrative offence (such record compiled on 27/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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12.	15087/20 12/03/2020	**Sergey Viktorovich SAMENKOV** 1971	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence (as raised by the applicant and as confirmed by documents), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	18092/20 30/03/2020	**Pavel Yuryevich KORNVEYTS** 2001	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 20,000	Moscow City Court 06/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police office, detention on 27/07/2019 in excess of three hours for the sole purpose of drawing up a record of administrative offence;	4,000
14.	18198/20 29/03/2020	**Aleksandr Vladimirovich MOKSHANOV** 1980	Bayturina Svetlana Nikolayevna Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/09/2019	Art. 5 (1) - unlawful deprivation of liberty- arrest and escorting to a police station, detention on 27/07/2019, in excess of three hours, for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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15.	20886/20 23/03/2020	**Denis Yevgenyevich SYCHEV** 1981	Sirosh Fedor Yevgenyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	40 hours of community service	Moscow City Court 24/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention between 27/07/2019 and 29/07/219 for the purpose of drawing up a record of administrative offence (such record compiled on 28/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
16.	20889/20 23/03/2020	**Pavel Sergeyevich AKAYEV** 1992	Sirosh Fedor Yevgenyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 24/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention between 27/07/2019 and 29/07/2019 for the sole purpose of drawing up a record of administrative offence (such record complied on 27/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	21313/20 07/05/2020	**Daniil Gennadyevich KONON** 1997	Chervonnyy Grigoriy Sergeyevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 3 of CAO	administrative detention of 15 days (the applicant absolved from serving the sentence)	Moscow City Court 24/01/2020	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention on 05/12/2019 for the sole purpose of drawing up a record of administrative offence in relation to the events of 27/07/2019, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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18.	25983/20 24/03/2020	**Nataliya Borisovna TYSHKEVICH** 1994	Zamyatin Yevgeniy Mikhaylovich Berlin	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention on 27/07/2019 in excess of three hours, for the purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
19.	27971/20 25/06/2020	**Ksenya Alekseyevna PEREVOZCHENKO** 1991	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 20,000	Moscow City Court 28/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect (administrative-offence record drawn up on 27/07/2019), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
20.	29687/20 13/07/2020	**Andrey Pavlovich BODROV** 1994	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 06/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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21.	30192/20 13/07/2020	**Viktor Nikolayevich IOVENKO** 1990	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.